

CASE SUMMARY

State (BSES YPL) v. Gaffar Miya (FIR No. 461/2019)

SC No. 447/2022 | FIR No. 461/2019, PS Dayal Pur | Court of the Addl. Sessions Judge-05 (Electricity), East, Karkardooma Courts, Delhi

COURT	Court of the Additional Sessions Judge-05 (Electricity), East District, Karkardooma Courts, Delhi
JUDGE	Sh. Ashish Rastogi, Addl. Sessions Judge-05 (Electricity)
DATE OF JUDGMENT	9 June 2026 (date of inspection / offence: 4 November 2019)
PARTIES	State (BSES Yamuna Power Ltd.) v. (1) Gaffar Miya S/o Sh. Allauddin, R/o H. No. 257, Gali No. 3, Old Mustafabad, Delhi-110094; (2) Sonia W/o Asif — proceedings against her dropped under Section 258 Cr.P.C. by order dated 9 June 2026
STATUTES INVOKED	Section 135 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B, 106 & 4, Indian Evidence Act, 1872; Sections 251, 258, 313 & 41A, Cr.P.C.
RESULT	Gaffar Miya convicted under Section 135, Electricity Act, 2003. Civil liability on the theft bill (Rs. 60,536/-) already settled and deposited during trial. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Gaffar Miya dishonestly abstracted electricity by drawing supply directly through illegal Teflon wires — the inspected first-floor premises having no meter installed — so as to attract the offence of theft of electricity under Section 135(1)(a) of the Electricity Act, 2003; and whether, once the prosecution proved an unauthorised means of abstraction, he discharged the statutory onus under the third proviso to Section 135(1). The complaint had also arraigned Sonia, the lady found at the premises during the raid, but the trial revealed she was the accused's married daughter visiting from Aligarh, and proceedings against her were dropped under Section 258 Cr.P.C. The recurring subsidiary question — admissibility of inspection videography without a Section 65B certificate — also arose.

FACTS

On 4 November 2019 at about 8.35 a.m., an enforcement/inspection team of BSES Yamuna Power Ltd., headed by Sh. R.B. Yadav (the then Assistant Manager), inspected the premises at H. No. 257, 1st Floor (left-hand-side portion), Gali No. 3, Old Mustafabad, Delhi — the same building, and the same inspection drive, as the companion cases against the accused (FIR 489/2019, 2nd floor) and his son Sattar Miya (FIR 458/2019, 1st floor right portion). No electricity meter was installed for the inspected premises; supply was being drawn directly through white Teflon wires connected from the input terminal of ground-floor meter No. 25228263. The connected load was 3.500 KW, used for domestic purposes. A lady present at the spot identified herself as Sonia and claimed to be the accused's tenant. The proceedings were videographed by Sh. Bani Singh; an Inspection Report, Load Report, Seizure Memo and Advisory Notice were

prepared at the spot. Following the applicable tariff, the company assessed a theft demand of Rs. 60,536/- and raised a theft bill, which went unpaid; the company's Authorised Officer thereupon filed a complaint under Section 135 of the Act against both Gaffar Miya and Sonia.

During trial it emerged that Sonia had wrongly described herself as a tenant: she is in fact the accused's daughter, married and ordinarily resident at her matrimonial home in Aligarh, U.P., and had merely come to visit her parents when the raid took place. Proceedings against her were dropped under Section 258 Cr.P.C. by order dated 9 June 2026, and the judgment proceeded against Gaffar Miya alone. A notice under Section 251 Cr.P.C. was served on 24 January 2025; the accused pleaded not guilty. The prosecution examined five witnesses — PW-1 R.B. Yadav (inspection team head; proved the videography CD Ex.PW1/A, inspection report, load report, seizure memo, advisory notice, theft bill and complaint, and identified the seized Teflon wires Ex.P1); PW-2 Bani Singh (videographer); PW-3 ASI Vijayant Kumar (IO; proved the FIR, site plan, Section 41A notice and identity documents); and PW-4 Mohd. Fareed and PW-5 Mohd. Mansoor (neighbours and ex-tenants, deposing to the accused's ownership). Under Section 313 Cr.P.C. the accused denied everything and pleaded false implication; his counsel's written arguments admitted that the theft-bill liability had been settled and deposited during trial.

REASONING OF THE COURT

HEADNOTE

Where a licensee proves an unmetered, direct tap on its line, the reverse-onus presumption in the third proviso to Section 135(1) compels a finding of dishonest theft unless the consumer proves a lawful, metered source; an accused who leads no defence evidence does not discharge that burden. A visitor found at the premises during the raid — here a married daughter falsely describing herself as a tenant — is not for that reason alone an offender, and proceedings against her were dropped under Section 258 Cr.P.C. Videography without a Section 65B certificate remains admissible absent a timely objection (*Sonu @ Amar*), and incriminating suggestions in defence cross-examination bind the accused (*Balu Sudam Khalde*).

The inspection videography was admissible despite the missing Section 65B certificate. Following *Sonu @ Amar v. State of Haryana*, AIR 2017 SC 3441, the Court reasoned that an objection to the want of a 65B certificate goes to the *mode of proof*, not to inherent admissibility, and must be taken when the electronic record is tendered and marked. As the defence raised no such objection when the CD was proved through PW-1 and PW-2, it could not be taken later, and the videography stood proved.

Section 135(1)(a) required a dishonest abstraction through an unauthorised connection. The Court identified the ingredients as a dishonest tapping of, or connection with, a licensee's lines so as to abstract, consume or use electricity, punishable with imprisonment up to three years, or fine, or both. "Dishonestly" being undefined in the Act, it imported Section 24 IPC (wrongful gain to one person or wrongful loss to another); as the allegation was of hooking an illegal wire, clause (a) applied. Under the third proviso to Section 135(1), proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use "until the contrary is proved."

The inspecting officials' evidence was corroborative and unshaken, and the defence's own cross-examination admitted the inspection. PW-1 and PW-2, the inspection team's prime witnesses, were mutually corroborative and unshaken as to the factum of inspection, the direct tapping, the 3.500 KW load and the seizure of the wires, none of which the accused disputed. The Court noted that Sonia, found at the spot, had wrongly and intentionally called herself a tenant when she was the accused's visiting daughter — and that PW-1's answers in cross-examination (that the illegal wires ran from the input terminal of the running ground-floor meter, and that no rent agreement for the supposed tenancy was ever produced) themselves admitted the factum of inspection. Relying on *Balu Sudam Khalde*

v. State of Maharashtra, 2023 INSC 314, it held that incriminating suggestions put by defence counsel bind the accused. The videography CD was played in court and the seized one-foot Teflon wires were produced and identified.

The absence of an independent public witness did not weaken the prosecution. No animosity of the officials towards the accused was shown, and on *Punjab State Electricity Board v. Ashwani Kumar*, 2010 (7) SCC 569, an inspection report made in discharge of official duty carries a presumption of regularity that the consumer must rebut by cogent evidence; on *Sushil Sharma v. BSES Rajdhani Power Ltd.* (Delhi HC, CrI. A. 1060/2010, decided 22.12.2010), non-examination of a public witness is no infirmity where the inspecting officials are trustworthy.

The presumption was compulsory, and the accused led nothing to rebut it. Following *Neeraj Dutt v. State*, SLP(CrI.) 6497/2020, “shall presume” is a compulsory presumption the Court is bound to draw until disproved, while *Hiten P. Dalal v. Bratindranath Banerjee*, 2001 (6) SCC 16, sets the rebuttal standard at evidence making the defence reasonably probable to a prudent man. The accused led no defence evidence; it was admitted that no meter existed for the premises, yet electric appliances were found, and no Genset or other lawful source was claimed. Applying *Mukesh Rastogi v. North Delhi Power Ltd.*, 2007 (99) DRJ 108, with Section 106 of the Evidence Act, the obvious rebuttal — producing paid electricity bills — was never attempted, and the accused’s settlement of the Rs. 60,536/- theft bill, rather than protest against a false claim, fortified the prosecution case. The presumption stood unrebutted.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135(1)(a) — Theft of Electricity

The Court treated clause (a) — tapping or making a connection with a licensee’s overhead, underground or service lines/wires — as the operative limb, the case being one of direct hooking rather than meter tampering (clauses (b)–(e) having no factual foundation). As the Act does not define “dishonestly,” the Court imported Section 24 IPC and treated the drawing of supply through an unmetered illegal Teflon-wire tap as satisfying the requirement of dishonest intention.

Third Proviso to Section 135(1) — Presumption of Dishonest Use

Read as a reverse-onus clause: proof of an artificial or unauthorised means of abstraction raises a presumption of dishonest use “until the contrary is proved.” Reading it with the “shall presume” jurisprudence (*Neeraj Dutt*) and the rebuttal standard (*Hiten P. Dalal*), the Court held that the burden shifted to the accused to make his innocence reasonably probable — a bare denial, without evidence of a lawful source or paid bills, could not discharge it.

HELD

The prosecution proved beyond reasonable doubt that no electricity meter existed at the inspected premises and that Gaffar Miya was found indulging in direct theft of electricity through an illegal wire — an offence punishable under Section 135 of the Electricity Act, 2003. Having led no evidence, he failed to rebut the statutory presumption under the third proviso to Section 135(1). Gaffar Miya is accordingly **convicted under Section 135 of the Electricity Act, 2003** (proceedings against co-accused Sonia having been dropped under Section 258 Cr.P.C.), and is to be heard on the quantum of sentence.

SIGNIFICANCE

The third conviction arising from the same 4 November 2019 inspection drive on H. No. 257, Old Mustafabad (with the companion cases against the accused himself and his son Sattar Miya), applying the same analytical framework. Six propositions stand out:

- **Mere presence at the raided premises is not culpability.** The visiting daughter who was found at the spot — and even falsely called herself a tenant — was not proceeded against; the Court dropped her under Section 258 Cr.P.C., confining liability to the person shown to be abstracting and using the electricity.
- **Section 65B certificate is not indispensable.** The absence of a 65B certificate for inspection videography is not fatal where the defence did not object when the electronic record was tendered (*Sonu @ Amar*).
- **Defence cross-examination can prove the case.** Incriminating suggestions put by defence counsel — here, that the wires ran from the running ground-floor meter’s input terminal — can themselves establish the factum of inspection and bind the accused (*Balu Sudam Khalde*).
- **The reverse-onus presumption does real work.** Once an unauthorised means of abstraction is proved, the “shall presume” clause compels a presumption of dishonest theft, rebuttable only by evidence of a lawful, metered source — typically paid bills under the Section 106 onus (*Mukesh Rastogi*).
- **A public witness is not essential.** Non-joining of an independent witness does not vitiate an otherwise trustworthy official inspection (*Ashwani Kumar; Sushil Sharma*).
- **Settling the theft bill can cut against the accused.** Payment of the civil liability during trial was read not as closure but as conduct corroborating guilt on the criminal charge.

CITATIONS

Neither the prosecution nor the defence relied on any case law in their arguments; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Sonu @ Amar v. State of Haryana</i> AIR 2017 SC 3441	An objection that an electronic record was admitted without a Section 65B certificate goes to the mode of proof and must be raised when the record is tendered; if not taken at trial, it cannot be raised later.	Relied on
<i>Balu Sudam Khalde v. State of Maharashtra</i> 2023 INSC 314	Incriminating suggestions put by defence counsel in cross-examination bind the accused and can themselves establish facts such as the factum of, and presence at, the inspection.	Relied on
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on

CASE	PRINCIPLE CITED FOR	TREATMENT
Neeraj Dutt v. State SLP(Crl.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
Hiten P. Dalal v. Bratindranath Banerjee 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making his defence reasonably probable to a prudent man.	Relied on
Mukesh Rastogi v. North Delhi Power Ltd. 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.